

Ajay Pal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 January 2023 · Writ-C No. 38251 of 2022 · WRIT - C No. 38251 of 2022 · **Writ disposed of on the same terms as Ramavtar Singh; remaining billing computation relegated to Clause 6.5, with no coercive action until a speaking order on any objection.**

HEADNOTE

A Division Bench of the Allahabad High Court disposed of a writ disputing a domestic electricity bill on the same terms as the coordinate-bench order in *Ramavtar Singh* (9 December 2022). Remaining computation disputes are to be raised before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005; if an objection is filed, no coercive measures until that objection is decided by a reasoned speaking order.

FACTUAL SUMMARY

Ajay Pal challenged the correctness of a domestic electricity bill for account 781703164925 at Sub-Division EDSD-II Ghiror, District Mainpuri. Both sides agreed the facts were similar to *Ramavtar Singh v. State of U.P.* (Writ-C No. 34797 of 2022, 9 December 2022), where a Consumer Forum had set aside earlier bills and directed a surcharge-free average-rate revision from 2013, the department had issued a revised bill, and recovery was challenged without citation particulars.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill — Clause 6.5 remittal

HOLDING

A writ disputing the correctness of an electricity bill is not a fit case for interference on the computation itself where remaining billing disputes lie under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer may object to the current computation before the Executive Engineer under that clause; if such an objection is filed, no coercive measures shall be taken until it is disposed of by a reasoned speaking order under intimation to the consumer. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench refused merits interference on the disputed bill and disposed of the writ on the *Ramavtar Singh* terms, sending remaining computation to Clause 6.5. Lead authorities: *Ramavtar Singh v. State of U.P. And 2 Others* [Writ-C No. 34797 of 2022]. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Any remaining dispute as to computation of the revised electricity bill is to be raised by invoking Clause 6.5 before the Executive Engineer. Lead authorities: *Ramavtar Singh v. State of U.P. And 2 Others* [Writ-C No. 34797 of 2022]. ¶ 1

billing-objection-to-executive-engineer-under-6.5 If the consumer files a Clause 6.5 objection to the current computation, coercive recovery is stayed until a reasoned speaking order on that objection. Lead authorities: *Ramavtar Singh v. State of U.P. And 2 Others* [Writ-C No. 34797 of 2022]. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL AND REMAINING COMPUTATION

Left to the Executive Engineer under Clause 6.5 if an objection is filed. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ramavtar Singh v. State of U.P. And 2 Others</i> Writ-C No. 34797 of 2022 (order dated 9 December 2022) High Court of Judicature at Allahabad	After a Consumer Forum revision of bills, remaining computation disputes go to Clause 6.5; no coercive measures until a speaking order on any objection.		1	Referred

SCJ-3013 · Ajay Pal v. State of U.P. · Writ-C No. 38251 of 2022 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.